

Laws of Climate Change



The Legal Perspective on Climate Change

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Introduction

Climate change is a complex global issue that affects every part of our lives. In 1992, world leaders met at the Earth Summit in Rio de Janeiro and created the United Nations Framework Convention on Climate Change (UNFCCC), the foundation for international climate action. The UNFCCC recognizes climate change as a challenge for all humankind and calls for the stabilization of greenhouse gases within a safe timeframe. It also establishes that developed countries should lead efforts to reduce emissions, following the principle of common but differentiated responsibilities. To coordinate global action, it created key institutions: the Conference of the Parties, the Secretariat, and the Subsidiary Body for Scientific and Technological Advice.



Group photo of world leaders meeting at the 'Earth Summit' in Rio de Janeiro, Brazil, 13 June 1992. UN Photo/Michos Tzovaras

International Development

After the UNFCCC was created in 1992, governments adopted the Kyoto Protocol in 1997. This was a top-down approach, meaning developed countries were given clear emission reduction targets because they were historically responsible for most greenhouse gases. Kyoto also introduced flexible tools like emissions trading and monitoring systems to help nations meet their goals.

In 2015, the Paris Agreement marked a new era with a bottom-up approach. Instead of fixed targets, each country designs its own Nationally Determined Contributions (NDCs) — climate action plans that must be updated regularly and show increasing ambition. The Paris Agreement set a global goal: keep warming well below 2°C, and ideally limit it to 1.5°C. It recognizes that developing countries may need more time to peak emissions, but all nations must eventually balance what they emit with what nature can absorb.

Importantly, the Paris Agreement also acknowledges loss and damage — impacts that cannot be prevented or adapted to — and created mechanisms for cooperation and support, especially for vulnerable communities. Together, Kyoto and Paris show how international climate law has evolved: from binding targets for developed nations to a shared, flexible system where all countries contribute to protecting our planet.

Notable Legal Development

Frustrated by slow global action, Pacific leaders and grass root youth led group (Pacific Islands Student Against Climate change) worked together to bring their concerns to the International Court of Justice (ICJ), one of the world's most influential international court. This movement was driven by young people, especially a student-led group, who pushed governments to take legal action and highlight climate change as a human rights issue.

In 2025, the ICJ issued a landmark advisory opinion clarifying the obligation of the states and legal consequences of causing significant harm to the climate system. The ICJ emphasized the state duties to prevent significant harm to the environment and co-operate for the protection of the environment.



Members of PISFCC stand in traditional dress, grounding the demonstration in Pacific identity and heritage

Rallying for Climate Accountability: Pacific Voices Rise, Suva, 09 July 22.
PISFCC/ Right Livelihood

The ICJ stated that all countries have a legal duty to reduce greenhouse gas emissions, protect human rights, and support countries most affected by climate change. It also emphasized that wealthy, high-emitting countries carry greater responsibility and may need to provide financial help to vulnerable nations. The opinion, while not legally binding, guides courts and policymakers, shaping climate litigation and reinforcing the legal basis for more ambitious, coordinated state action worldwide and informs international climate negotiations.

Landmark Ruling in Asia

Coming back to Asia, Do Hyun Kim et al. v. South Korea is a landmark constitutional climate case decided by the South Korean Constitutional Court on 29 August 2024. Sixty-two young plaintiffs, including a fetus, argued that the government’s emissions reduction target (NDC) was insufficient to protect their fundamental rights, including life, health, and a healthy environment. The Court partially agreed, declaring part of the carbon neutrality law unconstitutional and ordering legislative revision by February 2026.



Some of the plaintiffs bringing their case to the court, South Korea, 20 May 2024 Amenstry International

This ruling is significant for climate litigation in Southeast and East Asia because it affirms that inadequate climate targets can violate constitutional rights, especially on intergenerational equity (fairness and justice between generations). It strengthens rights-based climate claims and legitimizes youth-led litigation. The decision may encourage courts in neighboring jurisdictions to scrutinize national climate policies more rigorously, potentially accelerating stronger mitigation commitments and shaping regional climate governance.

Climate Law in Hong Kong

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